



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

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Prospectus for Campground and Related Granger-Thye Concessions

Lincoln National Forest

U.S. DEPARTMENT OF AGRICULTURE
Forest Service



Lincoln National Forest

Sacramento, Smokey Bear, and Guadalupe Ranger District

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VII. Pertinent Materials (Available Upon Request)

“Cleaning Recreation Sites” (USDA-Forest Service)

[PDF](https://www.fs.usda.gov/t-d/pubs/pdf/95231206.pdf): <https://www.fs.usda.gov/t-d/pubs/pdf/95231206.pdf>

“In Depth Design and Maintenance Manual for Vault Toilets” (USDA-Forest Service)

[PDF](https://www.fs.usda.gov/t-d/pubs/pdfimage/91231601.pdf): <https://www.fs.usda.gov/t-d/pubs/pdfimage/91231601.pdf>

“Vault Toilet Pumping Contract Specifications and Guidelines for Preparing Contracts”

[PDF](https://www.fs.usda.gov/t-d/pubs/pdfimage/92231308.pdf): <https://www.fs.usda.gov/t-d/pubs/pdfimage/92231308.pdf>

I. Business Opportunity

A. Introduction

This prospectus is being issued to solicit applications for a concession campground special use permit. A permit to provide high-quality public service in the operation and maintenance of Government-owned recreation facilities located on the Sacramento, Smokey Bear, and Guadalupe Ranger District, Lincoln National Forest, will be issued. The permit will include the following developed sites:

Table 1. Site List

Site Name	Site Type
Apache Campground	Campground
Aspen Group Campground Area	Group Campground
Black Bear Group Campground	Group Campground
Deerhead Campground	Campground
James Canyon Campground (optional)	Campground
Lower Fir Group Campground Area	Group Campground
Pines Campground	Campground
Saddle Campground	Campground
Silver Campground and Amphitheater	Campground and Amphitheater
Silver Overflow Campground	Campground
Sleepy Grass Campground	Campground
Sleepy Grass Picnic Area	Picnic Area
Slide Group Campground Area	Campground
Upper Fir Group Area	Group Campground
Upper Karr Canyon Dispersed Campground (optional)	Campground
Karr Canyon Picnic Area (optional)	Picnic Area
Oak Grove Campground*	Campground
Skyline Campground (optional)	Campground
Three Rivers Campground	Equestrian Campground
Sitting Bull Falls Recreation Area	Day Use

*See Section O for additional information.

The authorized officer for this business opportunity is the Forest Supervisor for the Lincoln National Forest.

Jason Freeman
Lincoln National Forest
3463 Loas Palomas Road
Alamogordo, NM 88310

The current permit for this concession expires on December 31, 2026. Over the past three years, this concession has generated the following gross revenues:

Table 2. Three Year Average Gross Revenue*

Year	Gross Revenue
2025	\$259,917.61
2024	\$244,455.20
2023	\$164,292.79
Three Year Average Gross Revenue	\$222,888.53

*Gross revenue totals include fees (2025- \$0, 2024 - \$426.80, 2023 - \$8,447.79) from Oak Grove Campground that has sustained excessive fire damage. See Section O for more information.

B. Area Description

Overview of the Lincoln National Forest

The Lincoln National Forest boundary encompasses 1,260,900 acres in south-central New Mexico, which includes 1,094,700 acres of National Forest System lands, intermixed with State of New Mexico land, Bureau of Land Management administered land, and private land. The Lincoln National Forest boundary is not contiguous, with more than 30 miles separating the districts. It is further divided into three ranger districts: the Smokey Bear, Sacramento, and Guadalupe Ranger Districts. The Smokey Bear Ranger District is in Lincoln County, the Sacramento District is in Otero and Chaves Counties, and Guadalupe District is in Chaves, Eddy, and Otero Counties.

The Lincoln provides a diverse range of recreation settings ranging from the Chihuahuan Desert to subalpine forested mountains. Recreational opportunities range from primitive to highly developed and are available throughout the year. The Lincoln National Forest consists of “sky islands,” isolated mountain ranges surrounded by desert. Because these forested mountain areas can be 20 degrees Fahrenheit cooler than surrounding desert regions during summer months, a popular use of the Lincoln National Forest for local communities at lower elevations is for climatic relief. Three scenic byways—the Billy the Kid National Scenic Byway, the Sunspot Highway National Forest Scenic Byway, and the Guadalupe Backcountry Byway—provide opportunities for viewing the diverse scenery of the region, which changes from high desert to high valley meadows and alpine terrain with increasing elevation.

Sacramento Ranger District

The Sacramento Ranger District is bounded on the north by the Mescalero Apache Indian Reservation, on the south by the Fort Bliss Military Reservation, and on the west by Alamogordo. In addition, the district is bounded on the west, south, and east by private land, State land, and BLM-administered land. Encompassing approximately one-half of the Lincoln National Forest, the Sacramento Ranger District is the largest contiguous area of forest. It contains two national recreation trails and most of the developed recreation sites, most of which are operated by private concessionaires. The Sacramento Ranger District provides for recreation on 169 miles of designated motorized trails. As a result, the Sacramento Ranger District is a popular destination for off-road vehicle recreation. While motorized vehicle use on motorized trails is not designated in the other two districts, such use still occurs on the regular road system in those districts. Ski

Cloudcroft, a ski area open during times of sufficient snowpack, is also in the Sacramento Ranger District.

Smokey Bear Ranger District

The Smokey Bear Ranger District is surrounded on the north, west, and east primarily by private land, with some State and BLM-administered lands. To the south, the district borders the Mescalero Apache Indian Reservation and Ruidoso. This district contains portions of the White, Capitan, Jicarilla, and Carrizo Mountains, and the hills above Highway 70 east of the city of Ruidoso Downs. Both of the Lincoln National Forest's wilderness areas, comprising about 82,924 acres, are located in the Smokey Bear Ranger District, and a large amount of equestrian use and outfitter-guided hunting occurs in this district. Mountain biking is also popular in the Smokey Bear Ranger District, which contains a trail system built in partnership with the local community that goes from the village of Ruidoso to the Lincoln National Forest; this trail system is heavily used. Ski Apache, the southernmost major ski area in the U.S., is located in both the Smokey Bear Ranger District and the Mescalero Apache Reservation.

Guadalupe Ranger District

The Guadalupe Ranger District is bounded predominately by BLM administered land on all sides, with some State and private land interspersed. On the south, the district is additionally bounded by National Park Service land. The Sitting Bull Falls Recreation Area, which offers climatic relief, is the main driver for recreational visits in the Guadalupe District. This developed recreation site contains Civilian Conservation Corps-era buildings, a publicly accessible natural pool and waterfall, which draw many visitors, picnic shelters, restrooms, and hiking trails within the canyon that all provide climatic relief from the surrounding high desert. The Guadalupe District is also very popular for hunting and off-road vehicle users.

For general information on the Lincoln National Forest and the sites included in the prospectus, refer to the forest website: <https://www.fs.usda.gov/r03/lincoln>.

C. Description of Developed Recreation Sites and Facilities

The description of each developed recreation site included in this prospectus is found in Appendix 20 Description of Developed Recreation Sites and Facilities. Please use descriptions in Appendix 20 together with the maps of developed sites in Appendix 2 and Appendix 3, Inventory of Government-Furnished Property.

D. Government Furnished Property

The Forest Service will provide certain property in conjunction with the concession campground special use permit (see Appendix 3 of the prospectus). Included in this inventory are a description, the quantity, and the estimated replacement cost of the applicable property.

E. Government Furnished Supplies

The Forest Service will not furnish any supplies for day-to-day operation of the concession. Government-furnished supplies will be limited to those necessary for programmatic consistency, including:

- Forms to report use and revenue (see appendix 5).

- A copy of the Forest Service publications, “Cleaning Recreation Sites,” “In-Depth Design and Maintenance Manual for Vault Toilets,” and “Vault Toilet Pumping Contract Specifications and Guidelines for Preparing Contracts.” *See links in Table of Contents.*
- A copy of “Recreation Opportunity Guides,” which the holder may reproduce at its expense.
- Title VI signs.

F. Utilities and Waste Management

Certain utilities and infrastructure exist for the developed recreation sites identified in this prospectus. The permit holder will be responsible for securing, managing, and paying for these utilities. Applicants should contact current service providers to obtain estimated costs for the utilities. These utilities are listed below in Table 3.

Table 3. Utilities – Sacramento Ranger District

Service	Contact
Electrical	Otero County Electric Cooperative 404 Burro Avenue Cloudcroft, NM 88317 (575) 682-2521
Telephone	Multiple Companies Available
Propane	Multiple Companies available
Water	Village of Cloudcroft 29 James Canyon Cloudcroft, New Mexico 88317 (575) 682-2411 ccvillageutilities@cloudcroftvillage.com
Garbage	Multiple Companies Available
Liquid & Solid Waste Disposal	Multiple Companies Available
Internet	Multiple Companies Available

Table 4. Utilities – Smokey Bear Ranger District

Service	Contact
Electrical	Otero County Electric Cooperative 1135 Hwy. 48 Alto, NM 88312 (575) 336-4550
Telephone	Multiple Companies Available
Propane	Multiple Companies Available
Water	Forest Service
Garbage	Green Tree Solid Waste 26590 US Hwy 70, Ruidoso Downs, NM (575) 378-4697 www.greentreeswa.org/
Liquid & Solid Waste Disposal	Multiple Companies Available
Internet	Multiple Companies Available

Table 5. Utilities – Guadalupe Ranger District

Service	Contact
Electrical	Rio Grande Electric Cooperative 778 E. U.S. Highway 90 Brackettville, TX 78832 (830) 563-2444 www.rgec.coop
Telephone	Dell Telephone 610 S MAIN Dell City, TX 79837 (915) 964-2352 delltelco.com
Propane	Multiple Companies Available
Water	USFS Well
Garbage	Southwest Disposal 575-434-1109 www.southwestdisposal.com/
Liquid & Solid Waste Disposal	Multiple Companies Available
Internet	Starlink

Water Systems

The permit holder is required to operate and maintain the water systems for all campgrounds in compliance with applicable federal, state, and local laws and regulations for the operation and maintenance of a public drinking water system. The permit holder is responsible for the operation and maintenance of each one of the various water systems that serves the recreation facilities included in the permit, in accordance with the terms of the permit.

It is the responsibility of the permit holder to ensure that these water systems are turned on at the beginning of seasonal campground operations and turned off at the end of seasonal campground operations. The holder is required to become familiar with the different water systems so they can operate and maintain them in accordance with federal, state, and local laws and regulations.

Damage to the water systems due to negligence on the part of the operator will be the permit holder's responsibility. Failure to blow-out lines and winterize will be deemed improper operation. The permit holder will operate water systems and maintain and repair all water facilities at each campground and building with plumbing.

II. Forest Service Concession Programs and Policies

Government-owned concessions are authorized by special use permits issued under Section 7 of the Granger-Thye (GT) Act, 16 U.S.C. 580d, and implementing regulations at 36 CFR Part 251, Subpart B.

In addition, there are certain Forest Service programs and policies that apply to campground concession. All applications must be consistent with these requirements.

A. Recreation.gov

The Lincoln National Forest participates in Recreation.gov, which provides nationwide, toll-free telephone reservations for single-family or group camping sites, rental cabins, permits, tours, tickets, and other recreational facilities. Visitors pay the camping fee at the time they make a reservation, and no fees are collected at the site (although the permit holder may allow occupancy of any site that is unreserved and charge on site for that use). Recreation.gov is part of the Recreation One-Stop Program, which is managed by the Washington Office Recreation, Heritage, and Volunteer Resources staff. The Forest Service contacts and program managers for Recreation.gov are listed below. Applicants should not contact the Recreation.gov contractor directly.

Table 6. Rec.gov contacts

Name	Location	Contact
Ryan Means	Southwestern Region 333 Broadway SE Albuquerque, NM 87102	Phone: 505-340-3705 Email: ryan.t.means@usda.gov
Griffin Schireman	Forest Service Contracting Officer's Technical Representative (COTR)	Phone: (541) 910-1705 Email: griffin.schireman@usda.gov

Recreation.gov is the only authorized reservation system for Forest Service-developed recreation sites, including but not limited to campgrounds, cabins, and group use areas. Applicants may recommend adding sites to or deleting sites from Recreation.gov or changing the number of sites that may be reserved, the minimum number of days per reservation, or the location of sites that may be reserved. The permit holder also may make these recommendations during the term of the permit. The authorized officer will decide whether to accept or reject the recommendations.

Under Recreation.gov, the following guidelines must be followed, unless there are compelling operational reasons:

1. For each developed recreation site included in Recreation.gov, at least 60 percent of the units must be available for reservations. The rest of the units may be occupied on a first-come, first-served basis.

Reservation windows vary by type of site and are as follows:

- Individual campsites: from 6 months to 0-4 days prior to arrival date, depending on location.
 - Group use areas: from 12 months to 0- 4 days prior to arrival date, depending on location.
2. When Recreation.gov is utilized, the permit holder is responsible for on-site administration and will be required to:
 - Obtain daily arrival reports (DARs) each morning by establishing at least one central facsimile location, email address, or other means of obtaining and distributing DARs.
 - Develop a system for posting reservations at the sites so other visitors know which units are reserved.
 - Post and hold reserved sites for 26 hours past the posted check-in time.

- Ensure that the party with the reservation is the party using the site.
- Resolve any disputes over the use of reserved sites by drop-in campers.
- Verify that visitors hold a valid federal pass (listed below) before giving the discount on fees for those passes (see section II.B). Do not discount fees if a visitor cannot present a valid pass.
 - ◆ Golden Age or Golden Access Passport.
 - ◆ America the Beautiful–The National Parks and Federal Recreational Lands Senior Pass or Access Pass.
 - ◆ Other passes as required by the authorized officer and described in this prospectus, such as local area passes.
- Develop inventory data for sites being added to Recreation.gov, and update data for sites including fees charged the public and temporary site closures. Submit data updates to Recreation.gov at least annually.
- Communicate to Recreation.gov any emergency closures or other relevant operational changes as they occur.
- Approve customer refunds as appropriate, and process them through Recreation.gov. Refund policies can be found at [Recreation.gov](https://www.recreation.gov/rules-reservation-policies) (<https://www.recreation.gov/rules-reservation-policies>).

Because reservations can be made up to a year in advance for group sites and up to 6 months in advance for family sites, Recreation.gov is currently accepting reservations for the upcoming operating season. Fees received by Recreation.gov will be held by the Forest Service and distributed following issuance of a special use permit to the successful applicant. In the final year of the permit, fees will be held in the same manner until a new permit is issued. The permit holder will honor reservations made prior to issuance of the permit at the price in effect when the reservations were made. If funds are distributed prematurely for dates outside the permit term, a bill for collection will to be issued to the permit holder.

B. Pass Discounts

The permit holder must provide a 50 percent discount on recreation fees charged under REA at developed recreation sites covered by this prospectus to holders of Golden Age and Golden Access Passports, as well as holders of the Interagency Senior and Access Passes.

Specifically, holders of these passes are entitled to a 50 percent discount on the fee for a single campsite occupied by the pass holders. The pass holders are not entitled to a discount on the fee for a multiple-family campsite, cabin, or group use area or any additional campsites occupied by those accompanying the pass holders. The 50 percent campsite discount does not include utility, water, or any other hookup fees.

Any loss of fee revenue from honoring the passes should be factored into applicants' bids.

The permit holder will not be required to offer discounts on camping to holders of the Annual or Volunteer Pass.

The following is a list of sites covered by this prospectus where the 50 percent discount for passes applies:

Deerhead Campground
James Canyon Campground (optional)
Pines Campground
Saddle Campground
Silver Campground
Silver Overflow Campground
Sleepy Grass Campground
Upper Karr Canyon Dispersed Campground (optional)
Oak Grove Campground*
Skyline Campground (optional)
Three Rivers Campground

Standard Amenity Recreation Fee Sites Under REA [Reserved]. The Forest Service is proposing a revision to FSM 2344.3 to address treatment of standard amenity recreation fee sites in the concession program. The agency reserves the right to amend a special use permit issued under this prospectus to be consistent with any change in that directive.

Sleepy Grass Picnic Area
Silver Amphitheater
Sitting Bull Falls Recreation Area
Karr Canyon Picnic Area (optional)

C. Camp Stamps

Camp stamps must be honored at their face value and submitted to the authorized officer for reimbursement.

D. Site Closure

The Forest Service reserves the right to close all or a portion of any area in this prospectus for repair; construction; floods, snow, extreme fire danger, or other natural events; wildlife protection; or risks to public health and safety. The Forest Service shall not be liable to the permit holder for lost revenue, operating costs, or any other losses resulting from these closures. However, for fee calculation purposes, the permit shall be placed in non-use status as provided by FSH 2709.11, section 31.23.

E. Administrative Use

If the Forest Service requires the permit holder to provide a service for the agency, the permit holder will be compensated for that use.

F. Applicable Forest Orders

Forest Orders may be issued to address a variety of management concerns on a particular forest. Sample orders related to the offering are identified in Appendix 4. Additional applicable forest orders may be issued in the future.

G. Fee Tickets and Compilation of Use and Revenue Data

The permit holder must provide fee tickets to visitors that include at least the following information:

- The site number and total amount paid.
- The date of issuance and number of days paid for.
- If a pass is used, the pass number.
- The number of people in the group.
- The number of vehicles and their license plate numbers.

The permit holder must provide use and revenue data to the Forest Service (see Appendix 5 of the prospectus for a sample use report). Use reports must be completed monthly and at the end of the operating season for each developed recreation site, provided that when the holder performs GT fee offset work in lieu of paying the land use fee in cash, use reports may be submitted quarterly, rather than monthly. At a minimum, monthly and year-end use reports must include:

- The total number of units occupied based on daily counts.
- The total number of people based on daily counts.
- The percentage of occupancy by month.
- Total recreation fee revenue.
- Total fee revenue for other goods and services.
- The total number of Camp Stamps collected.
- The total number of passes used.

In addition, year-end use reports must include:

- Total fee revenue collected under the NRRS.
- Total taxes paid.
- Total gross revenue.
- Total net revenue.

H. Customer Service Comment Cards

The permit holder must provide a customer service comment card to visitors at each developed recreation site (see Appendix 6 of the prospectus).

I. Performance Evaluations

At a minimum, the Forest Service will perform a year-end performance evaluation within four months of the close of the operating season (see Appendix 7 of the prospectus). An unsatisfactory rating may be cause for suspension or revocation of the special use permit. Sustained satisfactory performance is required for a permit extension.

J. Accessibility

The Architectural Barriers Act of 1968 (ABA) and Section 504 of the Rehabilitation Act of 1973 require new or altered facilities to be accessible, with few exceptions. In 2004, the Architectural and Transportation Barriers Compliance Board (Access Board) issued revised accessibility guidelines for buildings and facilities subject to the ABA and the Americans with Disabilities Act (ADA). These new guidelines are called the ADA/ABA Accessibility Guidelines. In 2006, the

Forest Service issued the Forest Service Outdoor Recreation Accessibility Guidelines (FSORAG). The FSORAG addresses types of recreational facilities, including developed recreation sites that are not covered by ADA/ABA Accessibility Guidelines.

Any Government maintenance, reconditioning, renovation, or improvement (see section III.C) must meet ADA/ABA Accessibility Guidelines, where applicable, as well as the FSORAG.

The FSORAG and the ADA/ABA Accessibility Guidelines are posted on the Forest Service's [website](https://www.fs.usda.gov/recreation/programs/accessibility/) at (<https://www.fs.usda.gov/recreation/programs/accessibility/>). Questions regarding ADA/ABA Accessibility Guidelines may be referred to the [Access Board](http://www.access-board.gov) at www.access-board.gov. Questions regarding the FSORAG may be referred to the accessibility coordinator for the local National Forest.

The permit holder is responsible for ensuring effective communication with visitors with disabilities, including persons with impaired vision or hearing, so that all visitors may obtain information on accessible services, activities, and facilities.

K. Camping Unit Capacity

Number of Vehicles Per Camping Unit

A single-family camping unit may accommodate one vehicle. A “vehicle” is defined as any motorized conveyance, except that for purposes of vehicular capacity, two motorcycles are considered one vehicle. Additional vehicles may be allowed at a camping unit, if the camping unit can safely accommodate them. When extra vehicles are allowed, an extra fee of up to 50 percent of the camping unit fee may be charged for each extra vehicle. If an extra vehicle exceeds the camping unit capacity (i.e., the extra vehicle causes a safety hazard or resource damage), the customer may be required to pay for an additional camping unit or park in an overflow parking area, if available. One towed vehicle per single camping unit will be allowed for no extra charge if it can be parked completely on the surfaced area and does not create a safety hazard. Examples of towed vehicles include a boat trailer or a car towed by a motor home.

Group Site Capacity

The capacity established for group sites is as follows:

Table 7. Group Site Capacity

Facility / Site Name	People	Vehicles
Aspen Group Area	Up to 70	18 Vehicles
Black Bear Group Area	Up to 70	18 Vehicles
Lower Fir Group Area	Up to 70	18 Vehicles
Slide Group Area	Up to 90	23 Vehicles
Upper Fir Group Area	Up to 120	30 Vehicles

Day Use Site Capacity

Table 8. Day Use Capacity

Facility / Site Name	People	Vehicles
Sitting Bull Falls Recreation Area	138	10

Facility / Site Name	People	Vehicles
Silver Amphitheater	Up to 100	30
Sleepy Grass Picnic Area	20	4
Karr Canyon Picnic Site	20	4

L. Stay Limit

Campers are prohibited from camping for more than 14 days, whether or not consecutive, within any 45-day period. After 14 days, campers must move at least 30 air miles from the previous camping location.

M. Fees Charged to the Public

The permit holder may charge the public fees only to the extent that the Forest Service can charge recreation fees under REA. All recreation fees must be specified per developed recreation site. The holder must honor the proposed pricing through the first full operating season. Thereafter, the holder may propose price adjustments with justification.

Permit holders may not charge for any of the following:

- Solely for parking, undesignated parking, or picnicking along roads or trailsides.
- General access, unless specifically authorized by REA.
- Dispersed areas with low or no investment, unless specifically authorized by REA.
- Persons who are driving through, walking through, boating through, horseback riding through, or hiking through NFS lands without using the recreational facilities and services for which a fee is charged.
- Camping at undeveloped sites that do not provide the minimum number of facilities and services prescribed by REA.
- Use of overlooks or scenic pullouts.
- Travel by private, noncommercial vehicle over any national parkway or any road or highway in the Federal-aid System that is commonly used by the public as a means of travel between two places, either or both of which are outside an area in which recreation fees are charged.
- Travel by private, noncommercial vehicle, boat, or aircraft over any road, highway, waterway, or airway to any land in which the person traveling has a property right, if the land is in an area in which recreation fees are charged.
- Any person who has a right of access for hunting or fishing privileges under a specific provision of law or treaty.
- Any person who is engaged in the conduct of official federal, state, tribal, or local government business.
- Special attention or extra services necessary to meet the needs of the disabled.

N. Law Enforcement

Forest Service Manual (FSM) 2342.1, Exhibit 01, addresses the law enforcement authorities and responsibilities of concessionaires, state and local law enforcement agencies, and the Forest Service at concession campgrounds. See Appendix 8 of the prospectus.

O. Other Pertinent Information

Optional Sites

There are 4 optional sites listed in this opportunity. Three optional sites are located on the Sacramento Ranger District; James Canyon Campground, Karr Canyon Picnic Area, and Upper Karr Canyon Dispersed Campground. There is one optional site on the Smokey Bear Ranger District; Skyline Campground. Proposals may include any combination of the optional sites, or alternatively, exclude them all. See Appendix 20 and Appendix 9 section 19 for additional information.

Future Additions to Campground Concession permit:

Oak Grove Campground, on the Smokey Bear Ranger District, sustained excessive fire damage during the 2024 South Fork Fire. The Forest Service will complete repairs and bring the campground up to agency standards before turning the site over to the permit holder. The anticipated completion of repairs is 2028. Upon completion of repairs the campground will be added to the special use permit.

Wildlife Mitigation

The New Mexico Game and Fish Department (888) 248-6866, and the Forest Service must be notified when predators/dangerous animals are observed in or near the developed areas.

Sensitive Species

Sacramento Checkerspot Butterfly

Most of the campgrounds and Group Areas around Cloudcroft are considered habitat for this species. The New Mexican Penstemon is the butterfly's only food source for the larvae and is found in the meadows along with the other plants such as sneeze weed and sunflowers. It is required that any vegetation that needs to be cleared must be coordinated with the Forest Service for prior approval from the district wildlife biologist.

Actions Requiring NEPA Review

The National Environmental Policy Act (NEPA) applies to a broad range of actions that may occur in a campground or day use area, including construction activities, facility and road maintenance, ground disturbance and vegetation management activities. These activities cannot proceed until the Forest Service has completed the required environmental review and approves the action or activity to take place. The Forest Service will expedite the environmental review process to the best of its ability however cannot be responsible for any loss of revenue due to delays resulting from the environmental review processes required by law.

Archaeological Resources

Any ground disturbing activity must be approved by the authorized officer prior to initiation to ensure compliance with the forests' heritage and NEPA requirements.

Condition of Trees

The oak and pine stands within the campgrounds are mature to over-mature. During the past few years, the trees have experienced heavy damage from bark beetles, wind, snow, dwarf mistletoe, and sudden limb drop.

Hazard Tree Removal

The permit holder will have to conduct pre-season inspection of the campgrounds to identify existing and potential hazards, including hazard trees. The permit holder also will be responsible for monitoring and identifying hazard trees during the operating season. After securing written approval from the authorized officer, the permit holder's financial responsibility for removing hazard trees and associated slash will not exceed **1%** per year. The annual operating plan will address appropriate disposal of hazard trees and slash.

Butane and Propane Installations

For safety and regulatory reasons, the permit holder is not allowed to install or store bulk butane or propane.

III. Special Use Permit

In exercising the rights and privileges granted by the special use permit, the permit holder must comply with all present and future federal laws and regulations and all present and future state, county, and municipal laws, regulations, and other legal requirements that apply to the permit area, to the extent they do not conflict with federal law, regulation, or policy. The Forest Service assumes no responsibility for enforcing laws, regulations, and other legal requirements that fall under the jurisdiction of other governmental entities.

A. Permit Term

The permit term will be for up to **5 years**, with an option to extend the term for up to an additional 5 years at the sole discretion of the authorized officer. The decision to extend the term will depend, in part, on sustained satisfactory performance of the permit holder. Upon expiration of the permit, continuation of the permitted activity will be at the sole discretion of the authorized officer and will be subject to a competitive offering. A new prospectus will be issued during the final year of the permit term.

If the decision to select a permit holder is appealed, a permit will not be issued until the appeal has been resolved, unless operation is needed during the appeal, in which case a permit with a term of one year or less may be issued.

B. Permit Holder Responsibilities

This section highlights the requirements of the special use permit, which is contained in Appendix 10 of the prospectus. Applicants are responsible for familiarizing themselves with all permit requirements that govern the operation covered by this prospectus.

Responsibility for Day-to-Day Activities

As a general rule, the holder will be required to conduct the day-to-day activities authorized by the permit. Some, but not all, of these activities may be conducted by someone other than the permit holder, but only with the prior written approval of the authorized officer. The permit holder will continue to be responsible for compliance with all the terms of the permit.

Permit Holder-Furnished Supplies and Equipment

The permit holder will be required to provide all vehicles, equipment, and supplies necessary to operate the authorized developed recreation sites in accordance with the special use permit.

Holder-Furnished Vehicles

The permit holder may not use all-terrain vehicles, motorcycles, or motorbicycles in the campgrounds. The holder may propose use of golf carts or other similar vehicles to facilitate daily maintenance of the facilities. If authorized, carts must stay on designated roads or trails while driving between sites or loops.

Holder Maintenance, Reconditioning, or Renovation (MRR)

Maintenance, reconditioning, and renovation are defined in the permit (FS-2700-4h, clause V.D.1(d)). Holder MRR is defined as maintenance, reconditioning, or renovation that neither materially adds to the value of the property nor appreciably prolongs its life. The work serves only to keep the facility in an ordinary, efficient operating condition. From an accounting or tax perspective, it is work that may be expensed, but not capitalized. In fulfilling these responsibilities, the holder must obtain any licenses and certified inspections required by regulatory agencies and follow state and local laws, regulations, and ordinances and industry standards or codes applicable to the permitted operation (FS-2700-4h, clause IV.H.1). The permit holder, at its expense, will be required to perform holder MRR under a holder MRR plan (FS-2700-4h, clause II.D and V.F). The holder MRR plan will describe required holder MRR and its frequency. The holder MRR plan will become part of the permit holder's annual operating plan.

C. Granger-Thye Fee Offset Agreement

The federal government owns all the improvements at the developed recreation sites covered by this prospectus. Under Section 7 of the Granger-Thye (GT) Act and the terms of the permit, the permit fee may be offset in whole or in part by the value of Government maintenance, reconditioning, renovation, and improvement (MRRI) performed at the permit holder's expense. Government MRRI is defined as maintenance, reconditioning, renovation, or improvement that arrests deterioration, improves and upgrades facilities, and appreciably prolongs the life of the property. Government maintenance, reconditioning, renovation or improvement, whether performed by the holder or the Forest Service, shall be performed at the sole discretion of the authorized officer. See Appendix 14 of the prospectus and FS-2700-4h, clause V.D.1(e).

All Government MRRI shall be enumerated in an annual GT fee offset agreement signed by the holder and the Forest Service in advance of the operating season (see Appendix 11 of the prospectus and FS-2700-4h, Appendix B). Alternatively, a multi-year fee GT fee offset agreement can be prepared for consolidated fee payments. A list of sample Government MRRI projects is included in Appendix 12 of the prospectus.

The holder must perform GT fee offset work. When that work includes construction that costs more than \$2,000, it is subject to the Davis-Bacon Act and the GT fee offset agreement must contain Davis-Bacon Act wage provisions. Additionally, indirect costs may be offset provided the holder submits either a currently approved indirect cost rate or accounting procedures and supporting documentation to determine an indirect cost rate (see Appendix 13 of the prospectus).

The holder's claims for GT fee offset must be documented using the FS-2700-4h, Appendix H, Granger-Thye Fee Offset Certification Form (see Appendix 14 of the prospectus). This form requires the holder to itemize allowable costs incurred for an approved GT fee offset project and to certify the accuracy and completeness of claims.

D. Insurance

Liability Insurance

The successful applicant must have liability insurance covering losses associated with the use and occupancy authorized by the permit arising from personal injury or death and third-party property damage in the minimum amount of **\$100,000** for injury or death to one person per occurrence; **\$300,000** for injury or death to more than one person per occurrence; and **\$25,000** for third-party property damage per occurrence, or in the minimum amount of **\$1,000,000** as a combined single limit per occurrence. Insurance policies must name the USDA Forest Service as an additional insured (see Appendix 10 of the prospectus and FS-2400-4h, clause III.K).

IV. Application

A. Instructions for Submitting Applications

Applicants may submit an application for all or some of the developed recreation sites offered in this prospectus.

Applicants are strongly encouraged to visit the sites at least once before submitting an application

Forest Led Facility Tour

During the Pre-Solicitation bidders were strongly encouraged to visit facilities during the summer of 2025. That would have allowed interested parties to view the sites during peak-season and ensure that sites were accessible without the risk of snow impact and road closures.

The information in this prospectus is from generally reliable sources, but no warranty is made as to its accuracy. Each applicant is expected to make an independent assessment of the business opportunity offered in this prospectus.

All applications must be submitted to;

Table 9. Application submittals

Addressee	Title	Attention	Address
Jason Freeman	Forest Supervisor	Paul Finch	3463 Las Palomas Alamogordo, NM 88310

Applications must be received by close of business (4:30 p.m.) on April 27, 2026.

Applicants must submit one hard copy and one electronic copy of their application to the Forest Service contact listed above. The electronic copy must be provided on a flash drive. The electronic copy must be prepared in a Microsoft Office program or PDF that allows for copying and pasting of text and must separately address each evaluation criterion listed in the prospectus.

Applications will not be returned to applicants.

Please ensure that all requested information is submitted. Missing or incomplete information will result in a lower rating for the corresponding evaluation criteria.

Applications must be signed. The person signing for an entity must have authority to sign for that entity. Applicants must include their address, telephone number, facsimile number, and email address.

Corporations also must include:

- Evidence of incorporation and good standing.
- If reasonably obtainable, the name and address of each shareholder owning 3 percent or more of the corporation's shares and the number and percentage of any class of voting shares that each shareholder is authorized to vote.
- The name and address of each affiliate of the corporation.
- If an affiliate is controlled by the corporation, the number of shares and the percentage of any class of voting stock of the affiliate owned, directly or indirectly, by the corporation.
- If an affiliate controls the corporation, the number of shares and the percentage of any class of voting stock of the corporation owned, directly or indirectly, by the affiliate.

Partnerships, limited liability companies (LLCs), associations, or other unincorporated entities must submit a certified copy of the partnership agreement or other documentation establishing the entity or a certificate of good standing under the laws of the state where the entity is located.

Applicants should contact Paul Finch at 575-682-5333 or paul.finch@usda.gov regarding any questions related to this prospectus. The deadline to submit questions regarding the prospectus is March 27, 2026.

B. General Terms, Qualifications, and Reservations

All applicants have an equal opportunity to apply. Except for members of Congress, Resident Commissioners, and current Forest Service employees, any individual or entity may apply.

The Forest Service does not guarantee a profitable operation. Rather, applicants are responsible for reviewing the prospectus and making their own determination concerning business viability.

The Forest Service will select the application that offers the best value to the Government. The Forest Service reserves the right to select the successful applicant based on a trade-off between the fee to the Government and technical merit.

The Forest Service is not obligated to accept the application with the highest return to the Government.

The Forest Service reserves the right to select the successful applicant based solely on the initial application, without oral or written discussions.

The Forest Service reserves the right to reject any or all applications and to rescind the prospectus at any time before a special use permit is issued.

Any oral statement made by a representative of the Forest Service shall not modify the requirements of this prospectus. If it is determined that an error or omission has been made or additional information is required, a written amendment will be sent to each person or entity receiving a copy of this prospectus.

If there is a conflict between the terms of the prospectus and the special use permit, the terms of the permit will control.

The Forest Service is proposing a revision to FSM 2344.3 to address how passes and passports are honored in the concession program. The agency reserves the right to amend the special use permit consistent with any change to that directive. In addition, the Forest Service reserves the right to amend the special use permit, to make it consistent with applicable laws and regulations, including REA; other Forest Service directives; or other management decisions.

The information contained in applications will be kept confidential to the extent permitted under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a).

C. Application Package Requirements

Applications must be in writing and must include or address the following:

- A proposed annual operating plan (including required and optional services).
- A business plan, business experience, references, and Small Business Development Center (SBDC) review fee, if applicable (see section IV.C.2).
- SBDC business plan review fee of \$300.00 made payable to El Camino College, SBDC.
- Financial resources.
- Fees charged to the public.
- Fee to the government.
- Initial processing fee.

1. Proposed Annual Operating Plan (Including Required and Optional Services)

Applicants must submit a proposed annual operating plan that addresses all required and optional services. Applicants must utilize the sample annual operating plan (see Appendix 9, Minimum Content of the Proposed Annual Operating Plan) to organize their response to this section. The successful applicant's proposed operating plan will be attached to and become a part of the special use permit.

Applicants must specify whether another party will assist with any of the operational aspects of the concession, and if so, must include the other party's name, address, telephone number, email address, and relevant experience.

Below are highlights of what needs to be addressed in the proposed annual operating plan. For more detail, see the Minimum Content of the Proposed Annual Operating Plan in Appendix 9 of the prospectus.

Operating Season

Applicants need to propose the period in which they will operate the sites listed in the prospectus. All sites must be open and operational seven days per week during the minimum operating season, unless a Forest Service closure order is in effect.

Staffing

Applicants must address appropriate staffing to meet customer service and cleanliness standards. The holder will be responsible for furnishing all personnel for the developed recreation sites and for adequately training and supervising their activities under the terms of the permit. The holder must meet requirements of federal and state laws governing employment, wages, and worker safety. Based on past experience, recommended staffing is outlined in Appendix 9 of the prospectus. Applicants should address worker hours and schedules. Applicants also should address staff training for effective customer service, conflict resolution, area-specific emergency procedures, and dissemination of recreation and tourism information.

Supervision and Management

Applicants must designate an individual to serve as the agent of the holder for purposes of administration of the permit by the Forest Service. The designated agent must periodically review attendant performance on site and must be available to resolve repair needs within 24 hours of discovery or notification. The holder will be responsible for the conduct of its employees, including preventing conduct prohibited by 36 CFR part 261, Subpart A, and ensuring that employees are not under the influence of intoxicating beverages or narcotic drugs while on duty or representing the holder. Applicants also must include a policy for removing employees who engage in inappropriate conduct.

Uniforms and Vehicle Identification

Applicants should describe employee uniforms, insignia, name tags, and the applicants' policy for ensuring a clean, professional appearance by staff while on duty. The holder's employees may not wear any component of the Forest Service uniform. Additionally, applicants should address their policy for vehicle maintenance and appearance; types of vehicles to be used for operations (vehicles may not be driven off designated roads or trails); and signage to identify the concessionaire to the public.

2. Business Plan, Business Experience, and References

Applicants must submit a business plan utilizing the format in Appendix 16 of the prospectus. This part of the application package must be a separate document. The business plan provides a thorough analysis of an applicant's vision of the proposed business. A good business plan is essential for running a successful business, maintaining and improving the business, and raising needed capital.

Applicants must furnish a detailed description of their experience relating to operating and maintaining developed recreation sites (e.g., campgrounds, beaches, and marinas). The

description must include experience in private business, public service, or any nonprofit or other related enterprises. Applicants are encouraged to contact their local SBDC if they need assistance in completing their business plans. Alternatively, applicants who have already received a review of their business plan from an SBDC or the Forest Service for the current fiscal year may submit a copy of the review report.

SBDC Review

All business plans will be independently reviewed by an SBDC. If an applicant's current fiscal year business plan has already been reviewed by an SBDC, the applicant may submit a copy of the review report.

Along with a business plan, applicants also must submit a cashier's check in the amount of **\$300.00 made payable to El Camino College SBDC**. Applicants submitting a current fiscal year review report by the Forest Service or an SBDC need not enclose payment.

Performance Evaluations

Applicants who have experience in managing Forest Service or other Government concessions must provide copies of the most recent annual written performance evaluations for each Forest Service or other concession the applicants have operated or are operating.

References

Applicants also must furnish three business references with names, addresses, telephone numbers, and email addresses in support of relevant business experience. These references will be contacted for information regarding applicants' past performance. In addition, the Forest Service may consider past performance information from other sources.

3. Financial Resources

Applicants must submit a complete set of all financial statements for the last three fiscal years that have been audited, reviewed, or compiled by a certified public accountant (CPA). For any financial statements that were only compiled by a CPA, applicants must complete FS-6500-24, Financial Statement (see Appendix 17 of the prospectus) for certification of the accuracy of the financial statements.

Applicants must complete FS-6500-24 for any of the last three fiscal years they were in business for which a financial statement was not audited, reviewed, or compiled by a CPA. An applicant who has had a financial ability determination (FAD) conducted within the past year should include a statement to that effect along with the forest name, contact name and telephone number. Additionally, applicants must identify any pending applications or new permits obtained from the Forest Service since the FAD was completed.

In completing FS-6500-24, LLCs must list the name of the company in block 1, the names and interests of the principals in block 5, and their members should be listed in block 6. In addition, LLCs must complete the certification in Part (D)(1) of FS-6500-24.

An applicant who has not been in business for the last three fiscal years, and therefore cannot submit audited, reviewed, or compiled financial statements or an FS-6500-24, must submit three fiscal years of projected financial statements compiled by a CPA using the forecast method.

Any financial information submitted by applicants must conform to generally accepted accounting principles (GAAP) or other comprehensive bases of accounting. Any previously prepared financial documents that are submitted must be unredacted and in their original form, including footnotes.

Applicants must show at least 25 percent of the first year's operating costs in liquid assets. Liquid assets are assets that are readily converted into cash.

Applicants also must complete blocks 1 through 5 of form FS-6500-25, Request for Verification (see Appendix 18 of the prospectus) and submit the signed and dated form with the application. The Forest Service will forward the FS-6500-25 for the most qualified applicant to the Albuquerque Service Center for processing. The auditor assigned to conduct the FAD will send a copy to each financial institution with which the applicant does business. The financial institutions must complete blocks 6 through 15 of the form and mail the completed form to **USDA Forest Service, Albuquerque Service Center**, Attention: Auditor, ASC-B&F, 101 B Sun Ave NE, Albuquerque, NM 87109.

4. Fees Charged to the Public

Applicants must provide a list of all fees they propose to charge to the public for the **first three years of operation, including fees for required and optional services** (see Appendix 9, Minimum Content of the Proposed Annual Operating Plan for a list of required and optional services). Discuss any variable pricing, discounts, and passes. All proposed fees to be charged to the public also must be included in the business plan as an income item.

The Forest Service reserves the right to regulate the rates charged to the public.

5. Fee to the Government

The Government is obligated to obtain fair market value for the use of its land and improvements. The minimum fee is **\$10,587.21** per year. The minimum fee is the concession's average gross revenue for the past three years multiplied by the current 30-year Treasury bond rate. The minimum fee will be adjusted at the end of the first five years of the permit term if the permit is extended for five years.

Minimum Fee Calculation

Table 10. Minimum Fee Calculation*

Year	Gross Revenue
2023	\$164,292.79
2024	\$244,455.20
2025	\$259,917.61
Grand Total	\$668,665.60
Average = Grand Total ÷ 3	\$668,665.60 ÷ 3 = \$222,888.60
Three Year Average Gross Revenue	\$222,888.60

*Gross revenue totals include fees (2025- \$0, 2024 - \$426.80, 2023 - \$8,447.79) from Oak Grove Campground that has sustained excessive fire damage. See Section O for more information.

Total gross revenue ÷ 3 = average gross revenue

Average gross revenue multiplied by the current 30-year Treasury bond rate = the minimum annual fee. In the following example, the 30-year Treasury bond rate is 4.750 percent.

$\$222,888.60 \times 0.0475 = \$10,587.21$ minimum annual fee

Applicants may propose a fee below the minimum, provided they can document why this amount represents fair market value. However, the Forest Service may reject the proposed fee if the agency determines that it does not reflect fair market value.

Applicants must propose the fee to the Government as a percentage of the concession's adjusted gross revenue. One percentage may be proposed for the entire permit term, or the percentage may vary each year. However, if a consolidated fee payment will be proposed, one percentage rate must be proposed for the entire period of consolidated payments.

Optional Consolidated Land Use Fee Payment. Applicants may propose a consolidated fee payment for up to 5 years during the initial permit term or extension of the term to finance a GT fee offset project. The consolidated land use fee payment will be determined by multiplying the average annual gross revenue of the offering for the past 3 years (adjusted, if applicable, based on expansion or contraction of the concession) by the number of years the land use fee payments will be consolidated, and multiplying the product by the percentage of gross revenue proposed by the applicant. If the Forest Service will perform the GT fee offset work using a collection agreement, the entire consolidated land use fee payment must be made when the first land use fee payment otherwise would have been due. If the holder will perform the GT fee offset work, the holder must commence that work within the first 6 months of the consolidated fee period and must complete the work within 18 months of the beginning of the consolidated fee period. The consolidated land use fee payment will not be reconciled based on actual gross revenues.

The proposed fee to the Government also must be included in the business plan as an expense item in the cash flow projections.

The fee to the Government may be offset in whole or in part by the value of Government MRRI, performed at the permit holder's expense in accordance with a GT fee offset agreement (see section III of the prospectus).

Cost Recovery

Applications submitted in response to this prospectus are subject to cost recovery pursuant to 36 CFR 251.58(c)(1)(ii) and (c)(3)(iii). Applicants must submit a processing fee of **\$200.00** to cover the cost of the prospectus and review of the application. Payments due the United States for this application must be paid in the form of a bank draft, money order, or cashier's check payable to the USDA-Forest Service. Payments will be credited on the date received by the designated Forest Service collection officer or deposit location. Additionally, the selected applicant will be responsible for the costs of preparing and issuing the permit and conducting a FAD, unless the Forest Service has conducted a FAD for the applicant within the past year. If a FAD has been completed for the applicant within the last 12 months, the applicant will be responsible for the cost of adjusting it to reflect any change this selection will have on the applicant's financial ability.

D. Evaluation of Applications

A Forest Service evaluation panel will evaluate each application utilizing the **non-fixed weight** method.

The following evaluation criteria are listed in descending order of importance:

- Proposed annual operating plan (including required and optional services).
- Business plan, business experience, and references.
- Fees charged to the public.
- Financial resources.
- Fee to the Government.

The Forest Service will consider only the applicant's written application package and any past performance information obtained by the Forest Service. During the evaluation process, the evaluation panel may contact any references, including all federal, state, and local entities that have had a business relationship with the applicant. The evaluation panel also may consider past performance information from other sources.

The evaluation panel will provide a summary of applicants to the authorized officer. The authorized officer will make the selection decision. All applicants will be notified of the successful applicant via certified mail.

The Forest Service will conduct a FAD on the selected applicant as a prerequisite to issuing a special use permit, unless the agency has a current fiscal year FAD conducted by the Albuquerque Service Center or SBDC for another Forest Service unit.

The Forest Service reserves the right to reject any and all applications.

The Forest Service reserves the right to rescind the prospectus at any time before a special use permit is issued. If the Forest Service rescinds the prospectus, application fees will be returned.

V. Post-Selection Requirements

Once an applicant has been selected, the following information must be submitted and approved by the Forest Service prior to issuance of a special use permit:

- A final annual operating plan containing all the items included in the annual operating plan submitted in response to the prospectus.
- An annual GT fee offset agreement.
- Documentation of required liability insurance and, if applicable, property insurance.
- Documentation of bonding, if applicable.
- Required deposits and advance payments (see Appendix 10 of the prospectus and FS-2700-4h, clause V.C.1).
- Documentation that utility services have been obtained in the name of the selected applicant.

- A state business license and any other required federal, state, or local certifications or licenses.

The successful applicant will be required to submit all these items within 30 days of the date of the selection letter. If these requirements are not met within the 30-day period, a special use permit will not be issued. The applicant who receives the next-highest rating may then be selected for the special use permit, subject to the same requirements.

Burden and Non-Discrimination Statement

According to the Paperwork Reduction Act of 1995, an agency may not conduct or sponsor, and a person is not required to respond to a collection of information unless it displays a valid OMB control number. The valid OMB control number for this information collection is 0596-0082. Response to this collection of information is mandatory. The authority to collect the information is the Organic Administration Act, 16 U.S.C. 551. The time required to complete this information collection is estimated to average 1 hour per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information.

In accordance with Federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its Agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from a public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity, in any program or activity conducted or funded by USDA (not all bases apply to all programs). Remedies and complaint filing deadlines vary by program or incident.

Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language, etc.) should contact the State or local Agency that administers the program or contact USDA through the Telecommunications Relay Service at 711(voice and TTY). Additionally, program information may be made available in languages other than English.

To file a program discrimination complaint, complete the USDA Program Discrimination Complaint Form, AD-3027, found online at [How to File a Program Discrimination Complaint](#) and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by: (1) mail: U.S. Department of Agriculture, Office of the Assistant Secretary for Civil Rights, 1400 Independence Avenue, SW, Mail Stop 9410, Washington, D.C. 20250-9410; (2) fax: (202) 690-7442; or (3) email: program.intake@usda.gov.

USDA is an equal opportunity provider, employer, and lender.

The Privacy Act of 1974 (5 U.S.C. 552a) and the Freedom of Information Act (5 U.S.C. 552) govern the confidentiality to be provided for information received by the Forest Service.